



TRANSNATIONAL CRIME & THE LIMITS OF INTERNATIONAL JUSTICE

What the Epstein Case Reveals

A case study in cross-border exploitation, jurisdiction, and accountability

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Our Central Question & Roadmap

Why is transnational sexual exploitation so hard to prosecute — and what do international law and cross-border cooperation need in order to work?



PART 1 Framing & the international scope of the case



PART 2 The legal framework — Palermo Protocol, UNTOC, jurisdiction & extradition



PART 3 Wealth, mobility, and the problem of "elite impunity"



PART 4 Accountability, transparency & lessons (incl. a Japan comparison)

This presentation centres victims and legal systems — not sensational detail.

SECTION 1 OF 4

Framing & the International Scope

Who Epstein was — and why this case crosses borders

01



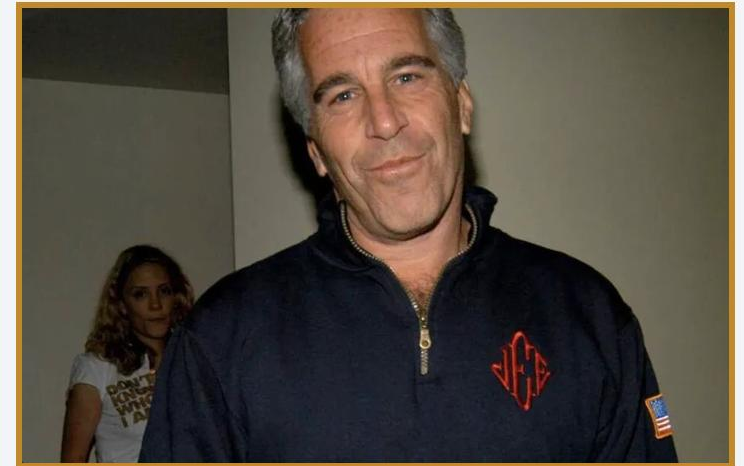


Who Was Jeffrey Epstein?

- A US financier who built vast wealth and a network of powerful international contacts.
- **2005–06:** A Palm Beach (Florida) police investigation into abuse of minors.
- **2008:** A controversial state plea deal; he registered as a sex offender.
- **2019:** Arrested on federal sex-trafficking charges in New York.
- Died in custody in August 2019 (ruled a suicide), ending the criminal case.

WHY HE MATTERS HERE

His death meant accountability had to be pursued through others — and across borders.



The crime was global; the criminal case ended at one nation's border.



A Case That Spanned Two Decades

2008

Florida state plea deal — widely criticised as lenient.

2019

Federal trafficking charges in New York; death in custody.

2021

Ghislaine Maxwell convicted of sex-trafficking conspiracy.

2025

Document-release wave renews scrutiny and debate.

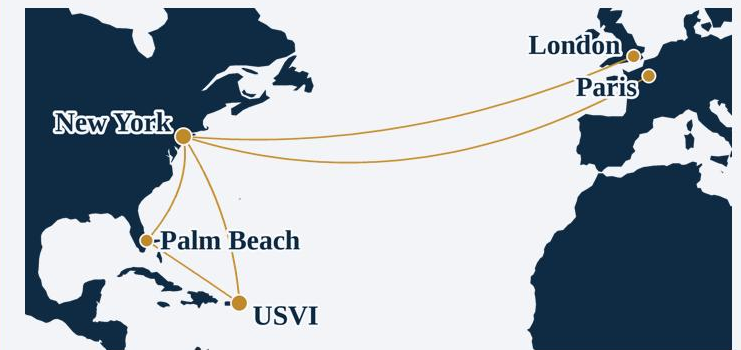
From a local plea bargain to a global question about justice, wealth and cross-border accountability.



Why This Is an International Story

- **Recruitment:** victims, including minors and foreign nationals, moved across borders.
- **Finance:** wealth held through offshore structures, obscuring ownership.
- **Property:** residences across the US, the US Virgin Islands and Paris.
- **Identity:** an expired passport bore his photo, a false name, and listed Saudi Arabia as residence.
- **Network:** associates spanning several countries and high office.

THE CORE TENSION



The network was global; enforcement is national. That gap is the heart of this case.

A global network meets national enforcement — and falls through the gaps.

02

SECTION 2 OF 4

The International Legal Framework

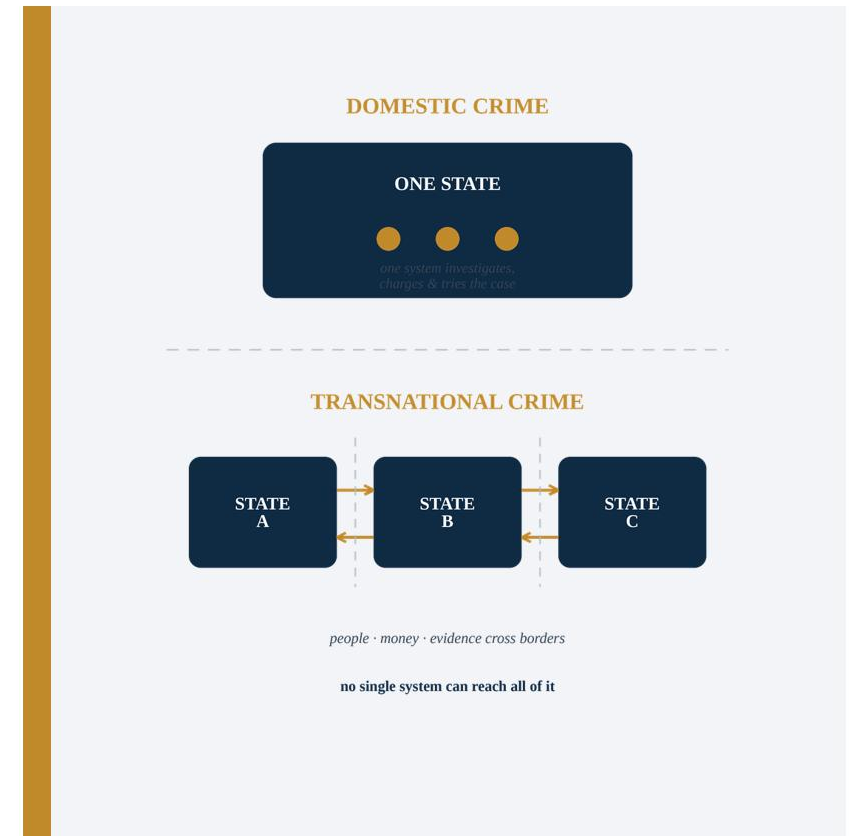
How international law addresses crime that crosses borders





What Makes a Crime "Transnational"?

- Committed in more than one state — or planned, directed or felt across borders.
- Trafficking is the paradigm case: it moves people, money and evidence between countries.
- Prosecuting it needs several countries' police, courts and laws to act together.
- Domestic systems, built for domestic crime, come under strain.

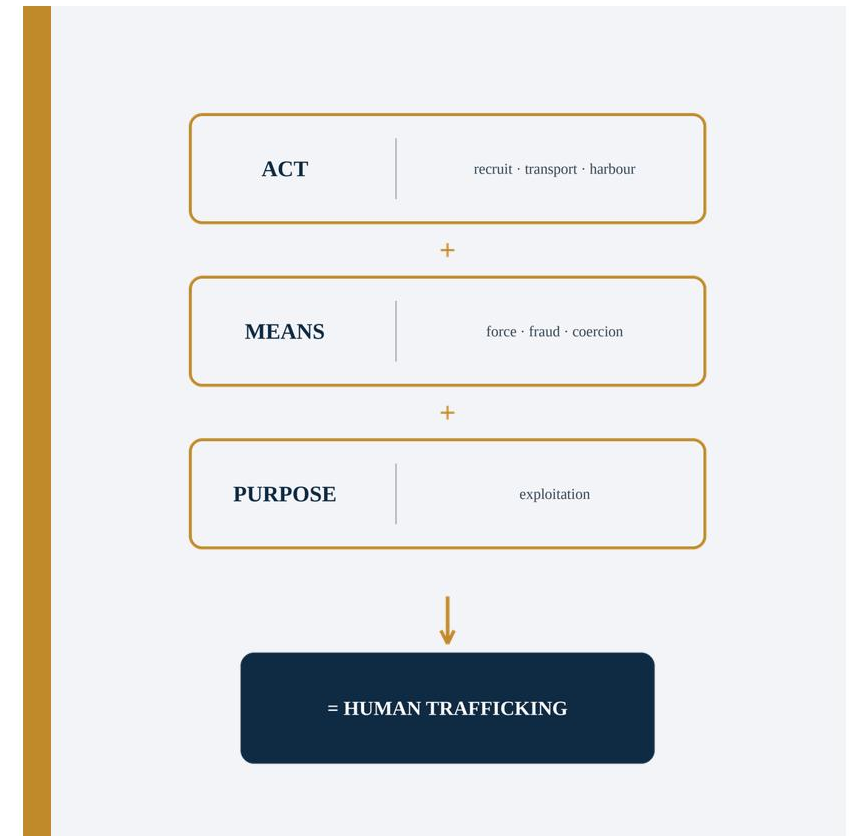


The question is institutional, not just moral: can sovereign systems coordinate fast enough?



The Palermo Protocol (2000)

- The first globally agreed definition of human trafficking (UN, 2000).
- Built from three elements: act + means + purpose of exploitation.
- For children, the "means" element is not required.
- Obliges 190+ states parties to criminalise trafficking at home.

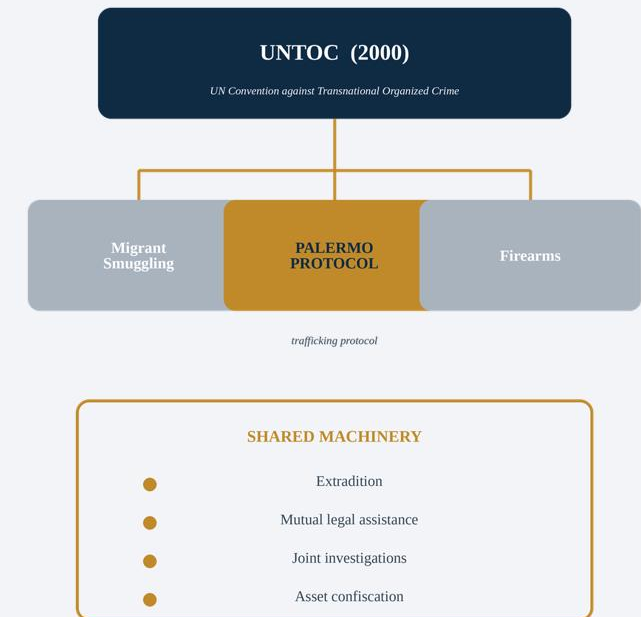


It gives 190+ states a shared vocabulary — a precondition for cooperation.



UNTOC & Cross-Border Cooperation

- Parent treaty: the UN Convention against Transnational Organized Crime.
- The Palermo Protocol supplements it; the two operate together.
- A framework for extradition, mutual legal assistance and joint investigations.
- Can be the legal basis for cooperation even with no bilateral treaty.

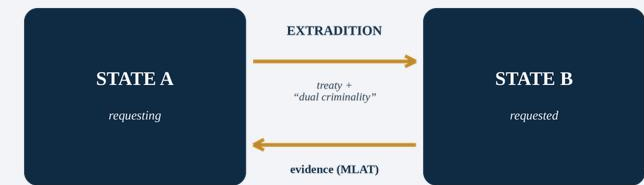


In short: the machinery for international cooperation already exists on paper.



Jurisdiction, Extradition & MLATs

- Jurisdiction: claimed by territory, or by nationality of offender/victim.
- Several states may have a concurrent right to prosecute.
- Extradition needs a treaty plus "dual criminality."
- MLATs move evidence and testimony across borders — but slowly.



THE FRICTION

- requests are slow
- can be refused
- stall when suspects are wealthy or well-connected

The tools exist — but speed and political will decide whether they work.



Foreign Nationals & Quasi-Diplomatic Figures

- **Ghislaine Maxwell (UK):** convicted in 2021 in a US court.
- **Prince Andrew (UK):** settled a US civil claim in 2022; later stepped back from royal titles.
- High status is no immunity — but it adds practical and diplomatic hurdles.
- Foreign nationality complicates arrest, extradition and gathering evidence abroad.

KEY FIGURES • WHAT IS ADJUDICATED



Ghislaine Maxwell

United Kingdom

Convicted of sex-trafficking conspiracy • 2021



Prince Andrew

United Kingdom

Settled a US civil claim • 2022

Charges, a conviction, a settled case — not speculation.

Stick to what is adjudicated: charges, a conviction, a settled civil case — not speculation.

03

SECTION 3 OF 4

Wealth, Mobility & Impunity

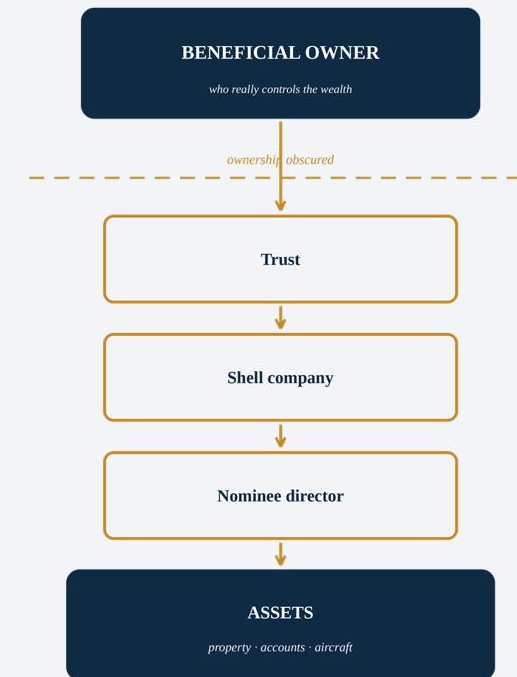
*How resources can delay — though not always defeat —
accountability*



Offshore Wealth & Global Mobility



- Offshore structures and trusts can hide who really owns assets.
- Property in several countries: places to live, store value and move between.
- Private travel reduces the scrutiny of ordinary border crossings.
- Wealth becomes mobility; mobility becomes delay.



None of this is unique to one man — it is how illicit elite wealth tends to behave.



"Elite Impunity": 2008 vs 2019

2008 — FLORIDA

- State-level plea deal
- Served ~13 months, with work release
- Non-prosecution agreement shielded others
- Victims said they were not consulted

2019 — FEDERAL (NY)

- Federal sex-trafficking charges
- Held without bail
- Treated as serious organised wrongdoing
- Case ended only with his death in custody

The same conduct, two very different responses — a decade apart.



Would Other Systems Have Acted Differently?

- **Adversarial vs inquisitorial:** France's investigating magistrates can drive cases differently.
- **Victim participation:** some systems give victims a formal role earlier.
- **Limitation periods:** how long after the abuse can charges be brought?
- Plea bargaining is less central in many civil-law systems.

FOUR SYSTEMS COMPARED



United States
adversarial



United Kingdom
adversarial



France
inquisitorial



Japan
civil-law

Same facts — would they act faster, or slower?

Central question: would the UK, France or Japan have acted faster — or slower?

04

SECTION 4 OF 4

Accountability, Transparency & Lessons

Designing cross-border justice that actually protects victims





The 2025 Document-Release Wave

- US transparency legislation drove a large release of case documents.
- Meant to answer public demand for accountability and openness.
- But disclosures made victims easy to identify — enablers less so.
- A real tension: public transparency vs victim privacy and safety.

CASE FILE · 2025 RELEASE

survivor identity
easy to identify

possible enabler
redacted / unknown

Transparency is not automatically just — its design determines who it protects.



Reform Proposals & a Japan Comparison

- Faster, better-resourced MLAT and extradition channels.
- Victim-centred disclosure rules that shield identities by default.
- Stronger cross-border asset tracing and recovery.
- Harmonised definitions so cooperation isn't blocked by mismatched laws.

JAPAN ANGLE



Japan has an anti-trafficking action framework and is assessed annually in the US State Department's TIP Report — a useful benchmark for how a non-Western system measures up on cross-border cooperation.

Better justice across borders is mostly an engineering problem, not a gap in principle.



Four Takeaways

01

**Crime crosses borders — justice often doesn't.***Networks are global; enforcement is national.*

02

**The legal tools already exist.***Palermo & UNTOC provide the framework; coordination is the gap.*

03

**Wealth buys time, not immunity.***Mobility delayed — but did not finally prevent — accountability.*

04

**Transparency must protect victims.***Disclosure should expose enablers, not endanger survivors.***SELECTED SOURCES & INSTRUMENTS**

Palermo Protocol (2000) · UN Convention against Transnational Organized Crime (UNTOC) · US DOJ filings (US v. Epstein, 2019; US v. Maxwell, 2021) · US State Dept. TIP Reports · contemporary reporting on the 2025 disclosures.